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California lawmakers want to tax guns and ammo

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Author: Lynn La | Section: Newsletters | 623 Words
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With adjournment edging ever closer next Thursday, legislators are continuing to push through bills to beat the deadline.

On Thursday:

Gun tax: After years of failed efforts, the Legislature sent Gov. Gavin Newsom a measure to tax firearms and ammunition to fund gun violence prevention in California, CalMatters' Alexei Koseff reports.

Assembly Bill 28 by Assemblymember Jesse Gabriel, a Woodland Hills Democrat, would impose an 11% excise tax on retailers and manufacturers for sales of guns or ammunition. Modeled on a similar federal levy for wildlife conservation, the tax could bring in an estimated $160 million annually for violence intervention programs, school safety improvements and law enforcement efforts to confiscate guns from people who are prohibited from owning them.

* Gabriel, to CalMatters: "We've passed a lot of good gun safety laws. The data shows that we have a lower gun death rate here in California than we do in other states. But this was one of the big things that was still out there."

Lawmakers unsuccessfully pursued sales or excise taxes on guns and ammunition — which face a higher two-thirds threshold for approval — half a dozen times over the past decade, some of which never even got a hearing.

That made Thursday particularly momentous for supporters. In the morning, Gabriel and several Assembly colleagues watched a lengthy floor debate in the Senate from the back of the chamber; Democrats narrowly approved AB 28 over the objections of Republicans, who said businesses would simply pass the cost onto customers, an unfair burden for sports shooters and hunters who frequently buy ammunition. After a final vote in the Assembly hours later, Gabriel was bombarded with congratulatory hugs.

"I'm going to cry. I'm going to cry. What a journey," said Assemblymember Buffy Wicks, an Oakland Democrat whose husband leads the gun control organization Giffords.

The bill now goes to Newsom, who has until Oct. 14 to sign or veto. Though he has been a vocal proponent of adopting more gun safety laws in California, a spokesperson for Newsom declined to comment on the measure.

Workplace retaliation: Alejandra Reyes-Velarde of CalMatters' California Divide team reports that in a victory for labor activists, a bill is headed to the governor desk that would require employers to prove they are not retaliating if they fire, demote or cut the hours of workers who have lodged workplace complaints against them.

The Assembly passed SB 497 on a 45-15 vote. The bill would mandate the California Labor Commissioner's office and state courts assume employers are illegally retaliating if they take certain disciplinary actions against a worker who in the prior 90 days has made a wage claim or a complaint about unequal pay.

"California has some of the strongest workplace and equal pay protections in the country," said Assemblymember Ash Kalra, the San Jose Democrat who presented the bill on behalf of Sen. Lola Smallwood-Cuevas, the Los Angeles Democrat who authored the bill. "However, our strong workplace protections are meaningless if workers are too afraid to speak up when their rights are violated."

Employers will be able to rebut the retaliation assumption by showing to the labor commissioner or courts that

there is a legitimate, non-retaliatory reason for the employee discipline, Kalra said.

Noise pollution: Meanwhile, Newsom is signing some noteworthy bills. Thursday, he announced his blessing of a measure to remove noise pollution from the list of potential environmental harms that can block housing. AB 1307 was authored by Assemblymember Wicks after a court ruling this year that halted a UC Berkeley student housing project under the California Environmental Quality Act.

* Newsom, in a statement: "California will not allow NIMBYism to take hold, blocking critically needed housing for years and even decades."

Focus on inequality: Each Friday, the California Divide team delivers a newsletter that focuses on the politics and policy of inequality. Read the latest installment here and subscribe here.

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